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POLITICS

Lawmakers brace for Trump's promised Jan. 6 pardons. Some are urging restraint



1 of 13 | The Jan. 6, 2021 attack on the Capitol seemed like it would immediately change the course of history, but its impact is now more uncertain.

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BY KEVIN FREKING

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WASHINGTON (AP) — The fourth anniversary of the [Jan. 6](#) attack on the Capitol has a new focus as lawmakers brace for the prospect that President-elect Donald Trump may soon pardon many of the more than 1,500 people [charged](#) with crimes for their actions related to [the riot](#).

Trump said he would issue pardons to rioters on “Day 1” of his presidency, which begins Jan. 20. “Most likely, I’ll do it very quickly,” he said [recently](#) on NBC’s “Meet the Press.” He added that “those people have suffered long and hard. And there may be some exceptions to it. I have to look. But, you know, if somebody was radical, crazy.”

His promise, made throughout his campaign for the White House, is shadowing events Monday as lawmakers gather [to certify a presidential election](#) for the first time since 2021, when [Trump’s supporters breached the Capitol](#) and temporarily halted the certification of an election [he lost](#) to Democrat Joe Biden.

Rep. Marjorie Taylor Greene, R-Ga., said she has spoken at length with Trump and is lobbying him to pardon everyone who participated in the siege. Few Republicans are going that far, but many believe it’s appropriate for Trump to look at pardons on a case-by-case basis.

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“Here we are nearly four years later. Many of these people have been in prison since 2021. Even the ones that fought Capitol Police, caused damage to the Capitol, I think they’ve served their time and I think they should all be pardoned and released from prison,” Greene said. “Some of these people have been given prison sentences: 10 years, 18 years and more. I think it’s an injustice. It’s a two-tiered justice system, and it’s time to end it.”

More than 1,250 have pleaded guilty or been convicted after trials in connection with Jan. 6, with more than 650 receiving prison time ranging from a few days to [22 years](#).

Many of those who broke into the Capitol were echoing Trump’s false claims about election fraud. Some rioters menacingly called out the names of prominent politicians — particularly then-House Speaker Nancy Pelosi, D-Calif., and then-Vice President Mike Pence, who refused to try to object to Biden’s win. Lawmakers who had evacuated both chambers on Jan. 6 returned that night to finish their work.

Police officers who defended the Capitol are particularly incensed about the possible pardons. Many officers were beaten, some with their own weapons, as they tried to hold back the mob. About 140 officers were [injured](#) on Jan. 6, making it “likely the largest single day mass assault of law enforcement” in American history, Matthew Graves, the outgoing U.S. attorney in the nation’s capital, [has said](#).

“You cannot be pro-police officer and rule of law if you are pardoning people who betrayed that trust, injured police officers and ransacked the Capitol,” said Capitol Police Sgt. Aquilino Gonell, who retired due to his injuries after fighting rioters.

Some Republicans in Congress, even those closely aligned with Trump, suggested not all Jan. 6 offenders should be treated the same.

Rep. Jim Jordan, a top Trump ally who leads the House Judiciary Committee, said he supported some pardons, but also made a distinction.

“For people who didn’t commit any violence, I think everyone supports that. I think that makes sense,” said Jordan, R-Ohio.

Veteran Republican Rep. Gus Bilirakis, R-Fla., also wasn’t ready to go as far as Greene. “You’ve got to look at it individually. Some probably deserve to be pardoned,” he said.

But he was more reticent when asked if those who attacked U.S. Capitol police officers should be among those pardoned.

“My goodness. Again, I’d have to look at the scenario,” he said. “But if they attacked the U.S. Capitol Police, it’s a big problem.”

Rep. Dusty Johnson, R-S.D., said not every single charge is the same and that people who were trespassing are a different category from those who entered the Capitol and damaged property. He said he believes Trump will look at each individual circumstance and decide what is appropriate.

“People who attacked police officers, listen, I don’t think that is something we should ever condone,” Johnson said.

House Democrats, who led the drive to [impeach Trump](#) over Jan. 6 and conducted a wide-

ranging investigation into the attack, warned that the pardons could have far-reaching consequences, both for the rule of law and the security of the country. Members of the extremist [Oath Keepers](#) and [Proud Boys](#), for instance, were convicted of [seditious conspiracy](#) and other crimes in relation to the insurrection.

“Those 140-odd law enforcement people who got hurt defending this institution, I think anyone who loves peace and security would be offended that you would pardon people who attacked those individuals for doing their jobs,” said Rep. Bennie Thompson, D-Miss.

Thompson led the House committee that investigated the events surrounding Jan. 6, [concluding](#) with a report that said Trump “lit the fire” for the insurrection.

Rep. Jamie Raskin, D-Md., who served as lead impeachment manager during Trump's second [impeachment](#) trial in which he was acquitted, said if pardons are going to happen, people should demand contrition and repentance from each of those pardoned and an affirmative statement they pose no further threat to public safety.

“Because anything that happens by these people, in a political context or some other context, will essentially be laid at the doorstep soon-to-be President Donald Trump,” Raskin said.

Like police officers who protected them, lawmakers who were in the Capitol during the attack have a visceral reaction to the pardon talk, having barely escaped a mob that seemed determined to do them harm.

Rep. Jim Himes, D-Conn., who was trapped in the House gallery as rioters tried to break in below, said it would be “extraordinarily difficult” for him and many others if Trump goes ahead with the pardons.

“I’m pretty controlled and pretty disciplined, but that would be really hard,” Himes said. “Too many of us had very personal experiences with the people who are serving time or were convicted.”

Associated Press writer Mary Clare Jalonick contributed to this report.

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